



File No.: EXP202301748

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 30/01/23. The complaint is directed against B.B.B. (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant in file EXP202103033, in which the action PS/00600/2021 was substantiated, in whose resolution a sanction was imposed on the respondent for being responsible for cameras directed at an easement leading to the respondent's home, without signage, states that the respondent has not adopted the corrective measures proposed in the aforementioned resolution, persisting in the infringing behavior that gave rise to the aforementioned file.

IMPOSE on Ms. B.B.B. with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, a fine of €300 (three hundred euros).

IMPOSE on Ms. B.B.B. with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR, a fine of €300 (three hundred euros).

She provides images from August 2022 showing that no corrective measures have been adopted by the respondent.

SECOND: On March 9, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

THIRD: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement of allegations on 10/04/23 in which, in summary, stated the following:

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"The property where I reside, and where the cameras are installed, is owned equally, as heirs of Mr. C.C.C., by my mother Ms. D.D.D., my sisters E.E.E., and the appearing party F.F.F. (hereinafter the parent property). It is recorded with an easement for access to the parent property (ANNEX IV.a) and to that of Mr. A.A.A. (ANNEX IV.b); I provide a copy of the deed of segregation and sale dated December 18, 1997 (ANNEX IV). The general access door to both properties has been broken for quite some time, leaving the parent property completely unprotected due to its proximity to the main road. At the same time, the access lane that crosses the entire parent property and divides it is also unprotected on the left side as it is not fenced and has several access points identified in ANNEX IV.c. The easement in question is a right of way for Mr. A.A.A. to access his property from the road through mine; it is never, as he intends to make it appear, providing even allegedly falsified data, his property. He only has the right of way and the obligation of maintenance and repair. The limitation that the duty to endure the use of the property by the owner of the dominant estate (in this case, the access lane over which the easement was established) cannot imply an additional limitation on the remaining powers of the owner of the servient estate and, as it relates to the cameras, to deny the dominant estate the power to preserve the safety of my family and my property.

The cameras are placed within my property and as I have demonstrated by the photos I have attached, they only focus on the lane and access points, never on the property of Mr. A.A.A.

However, before placing these cameras, we contacted this Data Protection Agency to gather information on the obligations that must be fulfilled; for this purpose, we visited the AEPD website, the video surveillance section, and downloaded the guide, we placed two clearly visible signs indicating that it is a video-monitored area, the person responsible for the processing, and how and where to exercise their rights. We also consulted examples that appear on the website and a report on the easement from the legal department of that Spanish Agency for Data Protection, which we attach as ANNEX VIII, which on page 2 literally states (...)."

FOURTH: On 08/05/23, a was issued in which it was agreed to propose the filing of the procedure as no administrative infringement in the matter at hand was substantiated.

FIFTH: Upon consulting the database of this agency, the proposal is recorded as delivered in the DEHU on 08/05/23, with no response having been registered in this regard.

From the actions taken in this procedure and the documentation in the file, the following

PROVEN FACTS

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First. The facts arise from the complaint dated 30/01/23, through which the following is conveyed to this Agency:

"the permanence of installed cameras affecting a right-of-way easement, without any corrective measure having been adopted by the respondent."

Second: The main responsible party is identified as B.B.B., with NIF ***NIF.1.

Third: There is a presence of an informational sign at the access to the parcel, informing about the presence of cameras, as well as the main responsible for the installation, without the complainant having exercised any rights or expressed their dissatisfaction to the neighbor being complained about.

Fourth: There is a presence of a video surveillance system on the parcel with four cameras:

- Camera 1 oriented towards the entrance of the parcel to control access to it.
- Camera 2 oriented towards the garden to protect it against potential theft of products.
- Cameras 3 and 4 oriented towards two unprotected points of the lane located on both sides of it.

Fifth: There is no evidence of data processing outside the cases established by the current regulations.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Before addressing the substance of the matter, it is not considered that there is a lack of an informational sign, as a "red" sign is observed indicating that it is a video-surveilled area, with indication of the data controller, as well as the method to exercise rights with an email address provided.

Therefore, it is not considered that the main access is not properly informed; rather, it has ample information on how to exercise rights within the framework of the current regulations.

III

In this case, the complaint dated 30/01/23 is examined, through which the following is conveyed: "presence of video surveillance cameras affecting the complainant's right as it is believed to focus on their property."

Initially, the content of Article 5.1(c) of the GDPR is considered affected, which states:

"Personal data shall be: c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legality, demonstrating that they meet all the requirements demanded by the current regulations.

The installation of such devices must have the requisite informational sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be oriented towards the private property, avoiding intimidation of nearby homes and/or public space with such devices.

Under no circumstances may the cameras record images of public roads or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps, complying with the requirements of LO 4/1997, August 4.

The installed cameras must be appropriate for the intended purpose, which is the protection of the main access to the residential area, avoiding any impact on the privacy of neighbors or nearby homes that are affected by the recording of images.

III

The respondent, in a lengthy written statement of allegations dated 10/04/23, denies the alleged facts, considering that the system complies with current legality, stating that "they are installed on their property," not directly affecting the complainant's home.

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In support of their claim, they argue that the access door to the plot is broken, and there is no willingness between the parties (dominant and servient estate) to arrange for its repair, with the aim of enhancing the security of the homes on the plot and the adjacent garden, which is why they proceeded to install various security cameras.

Article 530 of the Civil Code states: "The easement is a burden imposed on a property for the benefit of another belonging to a different owner. The property in favor of which the easement is established is called the dominant estate; the one that suffers it is called the servient estate."

The camera referred to as number 1 is oriented towards the main access of the plot that leads to a transit lane between the estates.

Specifically, in the system, the camera identified as number 2 is exclusively oriented towards the garden of their property with the aim of preventing the theft of products by third parties.

Meanwhile, camera number 4 is oriented towards a storage room owned by their sisters and the respondent.

They state that the control of the passage lane is minimal, making the orientation of the cameras essential to preserve the security of the plot and its belongings, including the garden located therein.

In this case, this body takes into account the various nuances of the facts presented, in such a way that the lack of repair of the main access door to the plot leaves it unprotected, making it easy for third parties to access it, which justifies the presence of the cameras, as well as the provided control of part of the access lane.

The presence of a camera at the only access point to the plot is necessary for the intended purpose of securing the plot as a whole, being a measure that also benefits the respondent, as preserving the security of the access road or lane also protects their property within it.

As the doctrine and extensive constitutional jurisprudence have clarified in cases of collision between

rights, "Any restriction or sacrifice of a right, principle, or constitutional good is only justified if, among other requirements, it is made to obtain a valuable good."

The conflicting parties are neighboring landowners in the plot in question, such that certain data is widely known (e.g., car license plate, etc.), not affecting areas reserved for their privacy, given that there is a considerable distance between the homes of both parties.

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No rights have been exercised within the framework of the regulations affecting this body, nor is there any evidence of the dissemination of the claimants' images outside the permitted scope.

All cameras are installed in such a way that they collectively monitor external areas, meaning they do not affect adjacent windows or nearby patios and are at a sufficient distance from the claimant's home, which does not allow for any inference of an impact on their personal and domestic sphere, reserved for their strictest personal and/or family privacy.

The willingness of the respondent to cooperate with this body, as well as the presentation of the facts in the exercise of their right to defense, does not presuppose a priori an intention to infringe the law; rather, it shows a collaborative attitude in seeking a solution to the underlying conflict between the parties.

Notwithstanding the above, this body reminds that the cameras, as far as possible, should be as non-invasive as possible, limiting themselves to the perimeter boundaries of the property and garden, leaving a space of the transit lane free from capture, proceeding, if necessary, to mask parts that do not comply with this premise, allowing camera number 1 to maintain its current orientation, without prejudice to this body being able to verify at any time that the cameras are positioned as established according to the marked criteria.

IV

According to the above, having analyzed the allegations and evidence presented, it can be concluded that at the present time, the installed cameras are proportionate to the intended purpose, which is the protection of the main access to prevent criminal situations in the respondent's home, as well as the possible theft of products from their garden, not affecting the area reserved for the privacy of the claimant and/or their family or close associates, reasons that justify the filing of this procedure. Finally, it is recommended that the parties redirect their relationship to the minimum rules of good neighborly coexistence, avoiding instrumentalizing this body in matters pertaining to civil law or resolving them in the appropriate judicial instances.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of this procedure as no administrative infringement has been established in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B..

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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